

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

Counterfactual Day-Late Petition for Panel and En Banc Rehearing

Relief requested and date of tender

Tendered June 30, 2026.

Leora Benton tenders this petition for panel rehearing and rehearing en banc from the June 15 opinion and judgment. She seeks reconsideration only of the affirmance of the order excluding the materially new subject in Tessa Wynn's declaration. She does not challenge the favorable decision vacating summary judgment on her retaliation claim or the remand for further proceedings on the admitted record.

The fourteen-day rehearing period measured from June 15 ended June 29, 2026. This petition is dated and transmitted on June 30. Benton did not obtain an extension before the deadline and submits no order changing the due date. She nevertheless asks that the court consider the enclosed grounds if it concludes that consideration is permitted. The substance is included so the requested evidentiary correction is clear, but the petition does not represent that its June 30 tender occurred within the ordinary Rule 40 period.

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Rehearing standard and limited question

Panel rehearing is warranted, Benton contends, because the opinion gave insufficient remedial weight to the distinction between disclosing the newly recalled subject and obtaining Wynn's signed declaration. Counsel learned the additional subject on October 15, two days before the supplementation cutoff. The opinion recognized that counsel could have communicated that subject in writing even if the declaration itself followed later. Benton contends that this recognized opportunity for a subject-only supplement also made a focused cure practical and should have carried greater weight in selecting the remedy.

The en banc question is whether the district court gave adequate separate consideration to a cure calibrated to a disclosure learned immediately before a scheduling cutoff. Benton does not ask the full court to alter the abuse-of-discretion standard or to excuse nondisclosure whenever evidence is important. She asks it to require attention to the practical difference between late disclosure of a witness and prompt disclosure of a new subject from an already-deposed witness. No reconsideration of the retaliation summary-judgment holding is requested.

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Disclosure chronology

Benton identified Wynn in her initial disclosures as a retained comparator with knowledge about the RIF scoring and reassignment of work. Wynn testified on October 2 about scoring, the Northline transition, and her expected duties. On October 13, she recalled a March 7 exchange with supervisor Naomi Voss. By October 15, she had reported that Voss referred to Benton's HR and EEOC problem while asking whether Wynn could assume Northline if Benton's position were removed.

The scheduling order set October 17 as the supplementation cutoff. Counsel did not serve a written subject description by that date and instead requested a declaration. Wynn signed on November 3; Benton served it November 4 and filed it with her November 10 opposition. Blue Cedar moved to exclude on November 12. Benton accepts that this sequence required a Rule 37 analysis. Her contention is narrower: the ability to disclose the subject promptly and arrange a confined deposition should have received separate weight when the court chose the remedy.

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Subject-only supplementation

Rule 26(e) requires a timely supplement when a prior disclosure or response becomes materially incomplete and the additional information has not otherwise been made known during discovery or in writing. Nothing in that duty requires counsel to await a sworn declaration before identifying a newly reported subject. Benton's failure to send such a notice is part of the chronology, but the available cure must be assessed from the time the omission is recognized and brought to the court's attention.

The panel opinion emphasized that the new protected-activity wording was absent from Wynn's deposition. Benton agrees that the wording was new. That novelty is precisely why a subject-specific supplement, followed by a short examination of Wynn and Voss, could have addressed surprise without eliminating the evidence. Rehearing should clarify that the court must compare the prejudice from the omission with concrete alternatives once the new subject is disclosed. The existence of a missed cutoff does not by itself explain why a targeted cure would have been inadequate.

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Cure, disruption, and lesser measures

The declaration was served on November 4, six days before Benton's opposition and more than eleven weeks before the scheduled January 26 trial. Blue Cedar filed its exclusion motion eight days after service. Benton proposed limited examinations concerning the statement, permission for Blue Cedar to supplement its reply, and payment of reasonable expenses attributable to the cure. She did not propose reopening unrelated discovery or moving the trial without limit.

The district court found that any cure would disrupt dispositive briefing and preparation. Benton submits that this conclusion addressed inconvenience at a general level but did not compare the offered measures with complete exclusion of important motive evidence. The panel repeated that assessment without explaining why a short Wynn and Voss examination, confined to one conversation, would have impaired resolution more than ordinary schedule management. Rehearing is requested so the court can determine whether a lesser remedy could protect Blue Cedar while allowing the factfinder to consider the newly recalled subject.

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Importance and explanation

The new statement was important because Voss participated in calibration and referred in one sentence to Benton's protected activity and possible removal. The statement did not attribute retaliatory words to Pike, the final decisionmaker, and Benton does not present it as conclusive. Its value lies in allowing the factfinder to assess whether a participant's motive influenced scoring and the later selection. Importance can increase the need for a cure, but it also weighs against a remedy broader than necessary to protect the opposing party.

Counsel explained that she sought a signed statement before supplementing because she wanted accurate wording and confirmation. The district court could find that choice insufficient to justify missing October 17. Benton does not ask rehearing to erase counsel's responsibility. She argues that a weak explanation does not end the separate harmlessness inquiry and that expenses, renewed examination, or a short briefing adjustment could address the consequences. The panel should reconsider whether the narrow exclusion was still more extensive than those circumstances required.

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Alternative request concerning the proffer

If the court does not disturb exclusion from the merits record, Benton asks the panel to clarify that the declaration remains reviewable as part of the proffer supporting appellate review of the Rule 37 ruling. Considering a document to determine its importance, novelty, and relationship to disclosed testimony does not admit its contents as merits proof. The opinion should make that procedural distinction explicit so the exclusion decision can be reviewed on the record made to challenge it.

That clarification would not affect the panel's favorable vacatur of summary judgment. The June 15 opinion assessed the merits from admitted materials and concluded that disputes concerning Pike's knowledge, calibration, comparators, alternatives, and explanations required trial. Benton does not ask the court to add Wynn's late statement to that merits assessment through this alternative request. She asks only that the proffer remain available for deciding whether the district court selected a proportionate remedy under Rules 26 and 37.

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Conclusion and certificate

Benton requests panel rehearing limited to the exclusion component or, alternatively, clarification that the Wynn declaration remains part of the appellate proffer concerning that ruling. She requests rehearing en banc on the same confined remedial question. She seeks no change to the judgment vacating summary judgment and remanding the retaliation claim, no appellate finding that the new statement is true, and no expansion of Wynn's timely comparator testimony.

Counsel certifies electronic transmission to the clerk and service on counsel for Blue Cedar on June 30, 2026. The June 15 judgment date and June 29 ordinary rehearing deadline are stated above. No extension order accompanies the submission. Counsel asks the clerk to present the tender to the court if the governing rules permit acceptance and otherwise to provide notice of its status. The requested relief rests on the existing exclusion motion, opposition, chronology proffer, district-court order, briefs, opinion, and judgment; no new evidentiary material is offered.